

The Limits of 'Why?'

MIGUEL EGLER - m.egler@uvt.nl

Vaccination: You attend a public deliberation session on whether vaccination for a deadly disease should be mandatory. You are ready to argue that it should be. There you are paired with a persistent political interlocutor (ppi): someone who relentlessly asks you to justify every single claim you make—from the empirical evidence to your most basic political beliefs. He does so because he is sincerely in doubt about the matter and is trying to determine where he stands.

Democratic requirements You may be tempted to, at some point, just ignore the ppi and simply try to push for mandatory vaccination. However, this is incompatible with many normative theories of democracy.

[T]o respect another person as an end is to require that coercive or political principles be as justifiable to that person as they presumably are to us. (Larmore, 1999)

[T]he social order should in principle be capable of explaining itself at the tribunal of each person's understanding. (Waldron, 1987, p. 149)

Public Justification Principle (PJP) Political actions should* be justifiable to** all those affected by them.

Problem Fully engaging with the ppi may lead to a folie à deux: a collective madness where you must engage with even their most abstruse concerns. This risks detracting political deliberation and/or political impasse. At the same time, violating PJP seems bad.

Solution Find reasons that make it legitimate for you to dismiss the ppi.

1 PJP

Justify to?

[W]hether or not some principle can be justified to a person, Peter, depends on what else Peter is justified in believing. Suppose the question is whether proposition Q can be justified to Peter. Suppose the only valid justification for Q depends on premises A, B, and C. In order for Peter to be justified in believing Q, Peter must therefore also be justified in believing A, B, and C. (Quong, 2011, p. 141)

Violations of PJP There is agreement that most normative theories of democracy should offer reasons that justify or excuse such violations. Do such reasons apply to the case of the ppi?

2 First pass

Proposal The ppi is unreasonable. That is, he does not see political society as a system of fair cooperation for mutual benefit of free and equal persons, nor does he accept that there could be reasonable disagreement about political matters.

Implication PJP only applies to reasonable people. So it wouldn't apply to the ppi.

Reply Although some ppi may be unreasonable, I'm not sure this is necessarily so. He may be sincere and fully committed to the terms of fair cooperation for the mutual benefit of free and equal citizens while also framing his concerns as the result of the burdens of judgement.

3 Second pass

Proposal Arguably, the ppi is simply mistaken. If he had thought more about it, he would not be so sceptical. Two ways this can happen (Vallier, 2020):

- moderate idealisation: within the ppi's current perspective and standards, he would be able to see your claims as justified.
- radical idealisation: if the ppi were to correct his perspectives and standards to what is true, he would see your claims as justified.

Implication If the ppi *could* come to see your position as justified, then we don't have to engage with his concerns.

Reply

1. Radical idealisations are famously dubious (Donahue, 2023; Enoch, 2015). In effect, they force compliance under a mere guise of fairness.
2. As for moderate idealisations, the ppi's *current* perspective and standards may simply not support mandatory vaccination. They would therefore have to radically change their outlook for such policy to become justifiable to them. (And see above.)

4 Third pass

Proposal If we allow the ppi to raise any challenge, then a pervasive form of epistemic scepticism about political claims would ensue.¹

Implication This would commit us to noncognitivism about politics—i.e., the idea that political actions about a topic T need not express our doxastic attitudes about T. Once that's on the table, politics as we know it is disconfigured.

Reply I am not so sure we should be so concerned about noncognitivism in politics.

1. We vote for all sorts of things we don't *really* believe in. Ruling out noncognitivism would rule out all sorts of political activity we are generally comfortable with.
2. There might be epistemic² reasons—non-evidential ones—that favour endorsing political views even when you are required to suspend (Egler, ms).

5 Final pass

Proposal Democratic deliberation is a kind of **collective inquiry**. In democratic decision-making, citizens work together to answer questions of the sort 'what should we do about this problem of common concern?'. The ppi violates zetetic norms that govern this kind of collective inquiry.

Relatively uncontroversial The zetetic conception is compatible with major normative theories of democracy.

1. Deliberative views: Pragmatist formulations such as Dewey's and later views inspired by Peirce's ideas on inquiry (Misak, 2002; Talisse, 2009) clearly reflect this zetetic spirit. But even Habermas' and Rawls' views may be said to do so too.
2. Aggregative views: Most clearly compatible with proposals relying on the CJT (e.g. Goodin and Spiekermann, 2018), or those which take voting to reveal what citizens believe to be in the common interest (Estlund, 1990).

Scientific inquiry Scientists must work together to ensure that the goals of scientific inquiry are met. Scientists fail in their role if they hamper or prevent this from happening.

¹ This is inspired by Rescorla's (2009) discussion of dialectical regress.

² The notion of 'epistemic' is controversial here

- *Zetetic norms of Science* Involve finding a balance between epistemic, moral, and pragmatic considerations (among others). This balance is continually reassessed as circumstances change.
- *psi* Fails in his role insofar as he is inflexible in attributing too much weight to (some kinds of) epistemic considerations.

Democratic inquiry Democratic citizens must also work together to meet the goals of democracy. Citizens fail in their role when they prevent this from happening.

- *Zetetic norms of Democracy* Also involve striking a fine balance between epistemic, moral, and pragmatic considerations. This balance also changes throughout time.
- *ppi* The ppi fails in his role as a democratic citizen insofar as he attributes too much weight to (some kinds of) epistemic considerations.

References

- Donahue, Sean (2023). "Powerful Deceivers and Public Reason Liberalism: An Argument for Externalization". In: *Australasian Journal of Philosophy* 101.2, pp. 405–422.
- Enoch, David (2015). "Against public reason". In: *Oxford studies in political philosophy* 1.20, pp. 112–142.
- Estlund, David M (1990). "Democracy without preference". In: *The Philosophical Review* 99.3, pp. 397–423.
- Goodin, Robert E and Kai Spiekermann (2018). *An epistemic theory of democracy*. Oxford University Press.
- Larmore, Charles (1999). "The moral basis of political liberalism". In: *The journal of philosophy* 96.12, pp. 599–625.
- Misak, Cheryl (2002). *Truth, politics, morality: Pragmatism and deliberation*. Routledge.
- Quong, Jonathan (2011). *Liberalism without perfection*. oxford university Press.
- Rescorla, Michael (2009). "Epistemic and dialectical regress". In: *Australasian Journal of Philosophy* 87.1, pp. 43–60.
- Talisse, Robert B (2009). *Democracy and moral conflict*. Cambridge: Cambridge University Press.
- Vallier, Kevin (2020). "In defense of idealization in public reason". In: *Erkenntnis* 85.5, pp. 1109–1128.
- Waldron, Jeremy (1987). *Theoretical foundations of liberalism*. na.